

CAPITAL ONE BANK (USA), N.A. v. PARK

21CF13686

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), "all matters noticed for the Law & Motion calendar **shall** include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Based on petitioner's failure to include the required language, the motion is DENIED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.

LVNV FUNDING v. COPPS

21CF13587

PLAINTIFF'S MOTION FOR ENTRY OF JUDGMENT

This is a limited jurisdiction collections case involving a debt of \$2,793.06. Before the Court this day is an unopposed motion by plaintiff for entry of judgment. For the reasons which follow, the motion is DENIED.

On 09/22/21, defendant made a first appearance and filed an Answer to the complaint. The Answer was blank.

On 10/28/21, plaintiff filed a motion for judgment on the pleadings (CCP §438), contending that the blank Answer failed to state any defense to the action. pursuant to CCP §438. Despite there being no opposition to the motion, this Court denied the motion on procedural grounds.

On 12/03/21, plaintiff filed a second motion for judgment on the pleadings (CCP §438), contending (again) that the blank Answer failed to state any defense to the action. pursuant to CCP §438. Despite there being no opposition to the motion, this Court recognized that the motion was more accurately a motion to strike under CCP §435, not a motion for judgment on the pleadings under CCP §438, because a blank Answer is more akin to a failure to conform rather than a failure to state. The motion was granted, subject to leave for defendant to file a proper Answer. The Court specifically advised that "if no Answer is filed, then plaintiff may proceed via default prove-up." (See Minute Order dated 01/07/22.)

On 03/07/22, plaintiff filed a motion for entry of judgment on the pleadings (CCP §438). Despite there being no opposition to the motion, this Court denied the motion on procedural grounds (no proof of service) and substantive grounds (reminding counsel that the proper approach here was to proceed by way of default judgment prove up).

On 06/06/22, plaintiff filed what is styled as its fourth motion for a judgment under CCP §438. Despite there being no opposition to the motion, or any apparent procedural anomalies, this Court is surprised that plaintiff continues to view a §438 motion as the proper procedure to obtain a judgment in this matter. Both on 01/07/22 and 04/15/22, this Court specifically advised that in the absence of any Answer, the proper procedure is to seek (1) entry of default, and then (2) a clerk's entry of judgment. Plaintiff has repeatedly declined that simple and quick resolution, opting instead for motion practice. To that end, the motion before the Court today is not a motion pursuant to CCP §438(h), but instead more properly is viewed as a motion for reconsideration of this Court's 04/15/22 order. Pursuant to CCP §1008, any motion for reconsideration be timely and supported by an affidavit setting forth the new or different facts, circumstances, or law